

Agreeing to Nothing

Consent Design of Extraction

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The whole idea for *Persona Test* started with an in-class presentation. While preparing my presentation on Obfuscation: A User's Guide for Privacy and Protest, I learned a lot about obfuscation and privacy, but I also started thinking about something the text does not really focus on. Brunton and Nissenbaum describe situations where opting out of surveillance is no longer a realistic choice. Users are left with weaker systems, or systems that still contain weak points, and have to find ways to push back from that position (Brunton & Nissenbaum, 2015). This made me wonder what happens when the interface does not even give users a clear way to refuse in the first place.

While working on the presentation, I also began noticing things I had normally just clicked past, such as cookie banners, terms of use, and privacy policies. They appear on almost every website and app, but I rarely stopped to think about what I was actually agreeing to. I also noticed that some entertainment and utility websites ask for much more personal information than seems necessary for their basic functions.. One example that stayed in my mind was an AI voice-detection website. It's a website that you can read aloud an English paragraph to the server, then it will give you back the result. I found that really interesting because, come on, I spent over 4% of my life learning English and I don't know if I really have a so-called "good local accent". I clicked in the link, and because of recently researching on the topic of privacy, I checked out their terms of use. The terms said something like submitted data would not be actively deleted and could be used for future updates or added to a database for training. If I missed a line like that, my voice could potentially be used in ways they did not expect. Why and what are they hiding? I got the question.

That made me think about making a fake website that looks like an ordinary questionnaire, but keeps asking for things that a user might normally want to refuse. I

wanted to exaggerate this situation and see how far I could push it while still making the website look believable. The idea was not just to tell the user that websites collect data, but to put them in a situation where they could actually see how difficult it can be to refuse. In the worst case, you can't even use it.

This is also where my project started to move away from the idea of obfuscation described by Brunton and Nissenbaum. They describe obfuscation as producing “noise modeled on an existing signal” so that information that is already exposed becomes harder to use (Brunton & Nissenbaum, 2015). My project does almost the opposite. Instead of adding noise to protect the user, I wanted to make the extraction itself visible. The user can see what information the website is asking for, but seeing it does not necessarily mean they can stop it. The website is obvious about what it is doing, while the user still barely has power to do anything about it.

This idea connects closely to Zuboff's discussion of data extraction in “Big Other: Surveillance Capitalism and the Prospects of an Information Civilization.” Zuboff argues that data extraction is fundamentally a one-way process rather than a relationship. She describes it as “a ‘taking from’ rather than either a ‘giving to,’ or a reciprocity of ‘give and take’” (Zuboff, 2015). I tried to build this idea directly into *Persona Test* through its terms of service, which state that it “reserves the right to define ‘Trusted’ at its sole discretion.” The wording sounds almost like a partnership, but the actual relationship is unilateral. The platform gets to decide what counts as consent, while the user has no way to challenge that definition from within the interface. To me, this makes the extraction look like a form of cooperation, even though the user is not really given anything in return.

I also wanted to make the lack of meaningful consent more obvious through the device-fingerprinting screen. Zuboff also describes the “formal indifference” of surveillance capitalists toward what users actually say or do. She argues that Google is “formally indifferent” to what its users say or do, as long as their actions can be captured and converted into data (Zuboff, 2015). This idea was what led me to add a device-fingerprinting screen to *Persona Test*. The screen runs without a dialogue box,

prompt, or request for permission. Instead, it only gives the disclaimer that nothing works. There is no interface moment in which the user is actually asked anything, like how some of the modern apps do. The system does not need the user to agree because the user only needs to be present. This is the asymmetry Zuboff describes made more literal. The platform does not require the user's participation in any meaningful sense, but it only requires their exposure.

Even though I know that I do not have a huge influence through one project, I still hope that people who played with *Persona Test* will pay a little more attention to their privacy afterwards. Maybe they will think twice before clicking “agree,” or spend a little more time reading what a website is actually asking from them. I do not expect one project to change the way people use technology, but if someone becomes even slightly more aware of what they are giving away, I think the project has already achieved what I wanted to do.

References

Brunton, F., & Nissenbaum, H. (2015). *Obfuscation: A user's guide for privacy and protest*. The MIT Press. <https://doi.org/10.7551/mitpress/9780262029735.001.0001>

Zuboff, S. (2015). Big other: Surveillance capitalism and the prospects of an information civilization. *Journal of Information Technology*, 30(1), 75–89. <https://doi.org/10.1057/jit.2015.5>

AI Disclosure

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